

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 12
Honorable Nahal Iravani-Sani, Presiding**

Courtroom Clerk, Ryan Nguyen
191 North First Street, San Jose, CA 95113
Telephone: (408) 882-2230

DATE: 07/08/2026 TIME: 9:00 A.M. and 9:01 A.M.

9:01	CASE #	CASE TITLE	RULING
LINE 1	24CV450008	Daniel Duran vs General Motors LLC	Motion to Withdraw as Attorney Plaintiff's Counsel David Derderian of Prestige Legal Solutions, P.C. Motion to Withdraw at Attorney Trial in this matter is scheduled for next week July 13, 2026. Trial assignment is July 9, 2026. Plaintiff and Counsel are both ordered to appear at the July 8, 2026 Motion to Withdraw hearing at 9:00 a.m. (remote appearance acceptable.) <i>Plaintiff's failure to appear may result in dismissal of the case.</i>
LINE 2	25CV481915	Keep America Safe and Beautiful vs Flex-Tech Hosing & Tubing, LLC	Hearing: Pro Hac Vice Counsel Defendant Flex-tech Hosing & Tubing, LLC's Application for Scott R. Schillings to appear pro hac vice pursuant to California Rules of Court Rule 9.40. Notice is proper. No opposition filed. Good cause appearing, the application is GRANTED. The court will sign the previously e-filed proposed order.

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Calendar Line 5**Case Name:** *Jane Doe v. Wanderlust Trust et al.***Case No.:** 25CV462561

Demurrer to First Amended Complaint by Defendant Alyssa Thach Terrizzano, Trustee of the Wanderlust Trust.

Procedural and Factual Background

On May 16, 2025, self-represented plaintiff Jane Doe (“Plaintiff”) filed the first amended complaint (“FAC”) against defendants Wanderlust Trust (“Trust”) and Alyssa Thach Terrizzano, as trustee of the Wanderlust Trust (“Trustee”; collectively, “Defendants”) alleging the following causes of action; (1) violation of the Rehabilitation Act and Fair Housing Act; (2) violation of the Fair Housing Act; and (3) discrimination of tenant’s source of income through California Fair Employment and Housing Act (FEHA).

Plaintiff brings this action against Defendants for their policy and practice of unlawfully discriminating against individual in the leasing of housing accommodations. (FAC, ¶ 1.) Specifically, the housing provider, NorCal Property Management Company (“NorCal Property”), and property manager, David Krause, discriminated against Plaintiff based on her status as a Housing Choice Voucher or “Section 8” recipient. (*Id.* at ¶¶ 5, 7.)

On April 3, 2023, Plaintiff contacted NorCal Property about a 2-bedroom duplex located in Los Gatos, California with a posted promise of “First Come First Serve” and viewed the property that same morning. (FAC, ¶¶ 36-38, 59.) After viewing the property and confirming that NorCal Property had not received any applications, Plaintiff immediately submitted an application with her current credit report, proof of income, bank statements, social security number, driver’s license photo, Section 8 housing voucher, and references. (*Id.* at ¶¶ 61-64, 67.) On April 4, 2023, NorCal Property mistakenly contacted Plaintiff about an open house for the same property, and Plaintiff attended the showing in disguise. (*Id.* at ¶ 74.) At the showing, Plaintiff heard that no applications had been submitted, and on April 6, 2023, learned that the property had been rented to another applicant after the April 4th showing. (*Id.* at ¶¶ 75-76.) Plaintiff alleges that the property manager refused to rent the property to her because of her disability and status as a Section 8 recipient. (*Id.* at ¶ 80.)

On September 29, 2025, the Trustee filed the instant demurrer. Plaintiff filed a timely opposition, and the Trustee filed a timely reply.

Demurrer to the FAC

The Trustee demurs to the entire FAC on the ground that Plaintiff improperly named the Trust as a defendant, and accordingly, the FAC fails to state sufficient facts to constitute a cause of action against the Trust. The Trustee also demurs to the first through third causes of action on the grounds that the claims fail to state sufficient facts to constitute a cause of action and are uncertain. (Code Civ. Proc., §§ 430.10, subds. (e)-(f).) Finally, the Trustee demurs to the claim for interest on the ground that no claim would qualify for interest.

Legal Standards

A demurrer may be utilized by “[t]he party against whom complaint has been filed” to object to the legal sufficiency of the pleading as whole, or to any “cause of action” stated therein, on one or more of the grounds enumerated by statute. (Code Civ. Proc., §§ 430.10, 430.50, subd. (a).) These grounds include that “[t]he pleading does not state facts sufficient to